

--SUMMARY--

Decision No. 202/24

16-Feb-2024

P.Ahlfeld

- In the course of employment (distinct departure test)
- In the course of employment (employer's premises)
- Right to sue

The issue in this application was whether the respondent's right of action was taken away pursuant to section 31 of the WSIA and whether the respondent was entitled to claim benefits under the WSIA. The slip and fall accident occurred at approximately 9:03 a.m. near the back entrance of the employer's premises, where the respondent (worker) was scheduled to commence her shift at 10:00 a.m.

The Vice-Chair denied the application. The respondent's right of action was not taken away by the Act.

The Vice-Chair considered whether the worker was in the course of employment at the time of her fall under OPM Document No. 15-02-02. The evidence clearly demonstrated that the worker arrived at the employer's parking lot earlier than her shift was to begin and she slipped and fell on the employer's premises when she went to throw out garbage. In determining whether being an hour early on the employer's premises constituted being in the course of employment, the Vice-Chair considered the respondent's activity on the date of the accident.

The respondent testified that on the days that she drove her daughter to work, she would arrive an hour early, park her car, and walk the 5 minute walk to Tim Hortons to have breakfast. The Vice-Chair considered whether this activity was a distinct departure from the respondent's employment because she had already arrived on the employer's premises. The respondent had not started her workday when she arrived at the employer's premises. In the Vice-Chair's view, this activity was an hour prior to her shift and no link could be made between the activity of going for breakfast prior to starting work and the job itself. The Vice-Chair was also not satisfied that the mere activity of parking at the employer's premises one hour prior to her start time indicated that the respondent was in the course of her employment at the point of her arrival.

17 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w1424s]
- BOARD DIRECTIVES AND GUIDELINES: Operational Policy Manual, Documents No. 15-02-02; 15-03-03; 15-03-04; 15-03-05; 15-03-08
- TRIBUNAL DECISIONS CONSIDERED: Decision No. 2432/11, 2013 ONWSIAT 20 refd to; Decision No. 643/02, 2002 ONWSIAT 1406 refd to; Decision No. 916/16, 2016 ONWSIAT 1251 refd to; Decision No. 1455/12, 2012 ONWSIAT 1707 refd to; Decision No. 1548/22, 2022 ONWSIAT 1779 refd to; Decision No. 1501/16, 2017 ONWSIAT 513 refd to; Decision No. 226/87, 1987 CanLII 1212 (ON WSIAT) refd to; Decision No. 276/87, 1987 CanLII 1529 (ON WSIAT) refd to; Decision No. 2922/00, 2000 ONWSIAT 3206 refd to; Decision No. 1380/01, 2002 ONWSIAT 1871 refd to; Decision No. 1721/10, 2010 ONWSIAT 2533 refd to

Style of Cause: Mensah v. Meighan Retirement Residence et al.
Neutral Citation: 2024 ONWSIAT 268



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 202/24

BEFORE:

P. Ahlfeld: Vice-Chair

HEARING:

February 8, 2024 at Toronto
Oral by Videoconference

DATE OF DECISION:

February 16, 2024

NEUTRAL CITATION:

2024 ONWSIAT 268

APPLICATION FOR ORDER UNDER SECTION 31 OF THE *WORKPLACE SAFETY AND INSURANCE ACT, 1997*

APPEARANCES:

For the Applicant(s)

P. Greco, Lawyer

For the Co-applicant(s)

T. Buckley, Lawyer

For the Respondent(s)/Co-respondent(s)

B. Vallis, Lawyer

Interpreter:

N/A

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REASONS

(i) Introduction

- [1] This is an application under section 31 of the *Workplace Safety and Insurance Act, 1997* (the WSIA) by the Applicants, Meighan Retirement Residence and the Governing Council of the Salvation Army and Co-applicants, Galtor Property Services Inc., who are the Defendants in an action filed in Ontario Superior Court of Justice in Toronto, Ontario as File No. CV-21-00654422-0000.

(ii) Issues

- [2] The issue in this application is whether the Respondent's right of action is taken away pursuant to section 31 of the WSIA and whether the Respondent is entitled to claim benefits under the WSIA. In order to determine these issues, the following questions must be answered:
1. At the time of the subject accident, was the Respondent a "worker" within the meaning of the Act?
 2. At the time of the subject accident, was the Respondent employed by a Schedule 1 employer?
 3. At the time of the subject accident, was the Respondent in the course of her employment?
 4. Are the Applicants Schedule 1 employers?

(iii) Background

- [3] The Respondent, Ms. Mensah, was involved in a slip and fall accident on February 27, 2019, when she sustained personal injuries, which consisted of a sprain/strain to the upper and lower back and right lower leg. The accident occurred at approximately 9:03 a.m. near the back entrance of the employer's premises, where the worker was scheduled to commence her shift at 10:00 a.m. The Respondent was walking to the rear of the building to throw out some trash in a garbage bin located near the back entrance of the employer's premises, having arrived an hour early to buy herself breakfast at Tim Hortons, when she slipped and fell. At the hearing, the Applicants and Respondent agreed to the following:
- At the time of the accident, the Respondent was a "worker" within the meaning of the Act; and
 - At the time of the accident, the Respondent was employed by a Schedule 1 employer.
 - At the time of the accident, the Applicants were Schedule 1 employers.
 - It was also agreed by the parties that the accident occurred on the employer's premises.

- [4] Given the above, the central issue to be determined in this appeal is whether the Respondent was in the course of her employment at the time of the accident.

(iv) Law and policy

[5] Section 31 of the WSIA provides that a party to an action or an insurer from whom statutory accident benefits (SABs) are claimed under section 268 of the *Insurance Act* may apply to the Tribunal to determine whether: a right of action is taken away by the Act; whether a plaintiff is entitled to claim benefits under the insurance plan; or whether the amount a party to an action is liable to pay is limited by the Act.

[6] Sections 26 through 29 of the WSIA provide the following:

26(1) No action lies to obtain benefits under the insurance plan, but all claims for benefits shall be heard and determined by the Board.

(2) Entitlement to benefits under the insurance plan is in lieu of all rights of action (statutory or otherwise) that a worker, a worker's survivor or a worker's spouse, child or dependant has or may have against the worker's employer or an executive officer of the employer for or by reason of an accident happening to the worker or an occupational disease contracted by the worker while in the employment of the employer.

27(1) Sections 28 to 31 apply with respect to a worker who sustains an injury or a disease that entitles him or her to benefits under the insurance plan and to the survivors of a deceased worker who are entitled to benefits under the plan.

(2) If a worker's right of action is taken away under section 28 or 29, the worker's spouse, child, dependant or survivors are, also, not entitled to commence an action under section 61 of the Family Law Act.

28(1) A worker employed by a Schedule 1 employer, the worker's survivors and a Schedule 1 employer are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. Any Schedule 1 employer.
2. A director, executive officer or worker employed by any Schedule 1 employer.

(2) A worker employed by a Schedule 2 employer and the worker's survivors are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. The worker's Schedule 2 employer.
2. A director, executive officer or worker employed by the worker's Schedule 2 employer.

(3) If the workers of one or more employers were involved in the circumstances in which the worker sustained the injury, subsection (1) applies only if the workers were acting in the course of their employment.

(4) Subsections (1) and (2) do not apply if any employer other than the worker's employer supplied a motor vehicle, machinery or equipment on a purchase or rental basis without also supplying workers to operate the motor vehicle, machinery or equipment.

29(1) This section applies in the following circumstances:

1. In an action by or on behalf of a worker employed by a Schedule 1 employer or a survivor of such a worker, any Schedule 1 employer or a director, executive officer or another worker employed by a Schedule 1 employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.
2. In an action by or on behalf of a worker employed by a Schedule 2 employer or a survivor of such a worker, the worker's Schedule 2 employer or a director, executive officer or another worker employed by the employer is determined to be

at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.

(2) The employer, director, executive officer or other worker is not liable to pay damages to the worker or his or her survivors or to contribute to or indemnify another person who is liable to pay such damages.

(3) The court shall determine what portion of the loss or damage was caused by the fault or negligence of the employer, director, executive officer or other worker and shall do so whether or not he, she or it is a party to the action.

(4) No damages, contribution or indemnity for the amount determined under subsection (3) to be caused by a person described in that subsection is recoverable in an action.

[7] In *Decision No. 1460/02*, 2003 ONWSIAT 297, the Panel noted that the Tribunal is not required to apply Board policy in right to sue applications, as section 126 of the Act refers to appeals, not applications. The Panel, however, also noted that it is important to maintain consistency with findings that might have been made had the case come to the Tribunal by way of an appeal from a decision regarding entitlement. Therefore, Board policy continues to be relevant in right to sue applications. See *Decision No. 755/02*, 2002 ONWSIAT 1488.

[8] In determining this application the Vice-Chair has considered the following Board documents from the WSIB's *Operational Policy Manual (OPM)*:

- 11-01-01: Adjudicative Process
- 15-02-01: Definition of an Accident
- 15-02-02: Accident in the Course of Employment
- 15-03-03: On/Off Employers' Premises
- 15-03-04: Employers Premises, Parking Lots, Roads, Plazas, Malls, Boundaries
- 15-03-05: Travelling
- 15-03-08: Personal Activities/Removing Self from Employment

(v) Applicant's witness, Ms. W.

[9] Ms. W. testified that she worked for, Meighan Retirement Residence (Residence) and Health Care Centre. She testified that the Residence and Health Care Centre were Schedule 1 employers as well as were Spectrum Health Care GP Inc. (Spectrum) and Spectrum Health Care Inc., the Governing Council of the Salvation Army Canada East and Galtor Property Services Inc., which was also a co-applicant. Ms. W. testified that the Respondent fell outside of the Residence on February 27, 2019. She further testified that the Co-applicant was the maintenance provider for the Applicants.

[10] Ms. W. testified that there were no specific parking rules in the Residence parking lot other than some designated spots for the residents living in the Residence. She testified that the workers at the Residence could park anywhere in that lot other than in the designated spots.

(vi) Respondent's testimony

[11] The Respondent testified that on February 27, 2019, she left her home at 6:00 a.m. She testified that she had a tea before she left and then she proceeded to drive her daughter to her clinical work prior to her arriving at her own employment, which she stated was scheduled to commence at 10:00 a.m. The Respondent testified that she is employed by Spectrum Health

Care GP Inc. as a personal support worker (PSW). She testified that since 2018, she has been working with the same client at the Residence. She stated that she had fixed hours of employment and generally, she would arrive at the client's location about 10 minutes prior to her start time.

[12] The Respondent testified that her daughter had started to do clinical work at a hospital in another city approximately two months prior to the workplace accident. She testified that every other Tuesday and Wednesday, she would drive her daughter to the hospital and then she would proceed to work. She stated that she would get to work an hour before her start time and she would use that hour on those days to go to a Tim Horton coffee shop, just a 5 minute walk away, to sit and get breakfast.

[13] The Respondent testified that on February 27, 2019, she arrived at the parking lot of the Residence at 9:03 a.m. She stated she parked her car, exited and proceeded to a garbage can that was located near the side of her employer's building. She stated that she had some papers and Kleenex that she needed to dispose of before she went to the coffee shop. She stated that the garbage can was located on the walkway. She testified that she slipped and fell and had to use a garbage can to assist her to get up.

[14] The Respondent testified that she was on the ground for about 20 minutes and when she was finally able to get herself up, she went to the nurses' office located in the Residence. She stated that she told the nurses what happened and they just told her to go into the washroom and clean herself up, which she stated she did. She testified that she went upstairs to the lounge near her client's room and then signed in with Spectrum. She stated she signed in via an application on her phone. She stated that normally she would sign in with Spectrum once she was with her client, but on this particular day, given that she had fallen, she was confused and signed in at 9:35 a.m. Nonetheless, she testified that even though she signed in at 9:35 a.m., she would only be paid from 10:00 a.m. because that is the time that the client had requested as a start time.

[15] The Respondent testified that she then remembered that she had not signed in with security when she left the nurses' station and she proceeded to go from the lounge to security to sign in. She testified that she then returned to the lounge and contacted Spectrum to advise them that she had an accident and needed a replacement. She testified that her replacement arrived at 4:00 p.m. at which point, she left work.

[16] The Respondent testified that she went to see her family doctor approximately one week later and told her doctor how she fell outside of her workplace. She stated that she remembered telling her doctor that she had fallen in the back of the building where she worked when throwing out some garbage, but she stated she never told her doctor that she was at the door of the Residence when the fall occurred.

[17] The Respondent was asked about compensation she may have received with respect to travel for work. She testified that she would get paid travel expenses only when she was traveling between clients. She stated that at least since 2018, she was working with the same client at the Residence, which she stated did not attract compensation. She stated that she may have been paid for some travel for work-related courses that she attended in 2018.

(vii) Applicants' representative's submissions

[18] It is the Applicants Representative's position that the Respondent should be barred from bringing an action at the Superior Court of Justice because the evidence clearly indicated that the

worker was at her work premises at the time of the accident on February 27, 2019 and the objective documentary evidence demonstrated that the worker signed in to her shift at 9:35. It was submitted that sign in at 9:35, together with the call to her employer at 9:45 and the sign in at security at 9:50, all suggest that the worker had already commenced her shift at work when the accident occurred. In this regard, it is the Applicants Representative's theory that the worker had signed in and commenced her shift at 9:35 and the accident occurred between 9:35 and 9:45, when she contacted her employer to report the fall.

[19] In the alternative, the Applicants Representative has submitted that even if the Respondent had arrived at the workplace at 9:03 as she claimed, she was nonetheless on the employer's premises, and the WSIB policy OPM Document No. 15-03-03, "On/Off Employers' Premises," supports the notion that if an accident happens on the workplace premises, then a worker is likely in the course of employment. It was submitted that the fact that the Respondent indicated that she was going to get breakfast off the premises is insignificant because it was submitted that getting breakfast or a snack is a minor deviation that was reasonably incidental to her duties as a PSW.

[20] Starting with the premises test, it was submitted that all the evidence supported that the worker was on the premises at the time of the accident. In this regard, the Applicants Representative relied on the following documents:

- It was submitted that the Employee Call Log Completed Activity Report w/Client dated August 17, 2022 indicated that the Respondent signed in with her employer at 9:35 a.m. on February 27, 2019.
- It was submitted that the Spectrum incident report from February 27, 2019 indicated that the Respondent called in to report a slip and fall at 9:45 on that day. It was submitted that the report further indicated that the Respondent was to start her shift at 10:00 a.m. that day but reported that she slipped and fell on snow and ice as she was walking towards the back door of the building.
- It was submitted that the Home Care Providers Log from February 27, 2019, indicated that the Respondent signed in with security at 9:50.
- It was submitted that the letter from Spectrum dated October 3, 2022 indicated that the Respondent was scheduled to work on February 27, 2019 from 10:00 a.m. to 16:30 and the electronic records indicated that she signed in to work at 9:35 and signed out at 16:00.
- It was submitted that the March 5, 2019 clinic note from Dr. Gideon, the Respondent's family doctor, indicated that the Respondent told the doctor that she fell on the walkway to the back door on February 27, 2019, which was also submitted, consistent with the Employer's Report of Injury/Illness – Form 7, dated March 7, 2019.

[21] The Applicants representative submitted that not only did the documentary evidence put the Respondent on the employer's premises at the time of the accident, it also indicated that the worker signed in for her shift at 9:35 a.m. on that date and the call to her employer was 10 minutes later. As such, it was submitted that the Respondent likely fell in that 10 minute window and the Respondent would not have had the opportunity to go to the coffee shop in any case.

- [22] Although the Applicants representative conceded that the Respondent provided oral testimony at the hearing that she believed would explain the timeline and why she would sign in early, it is the Applicants representative's submission that more weight should be given to the objective documentary evidence because the Respondent's oral testimony was not consistent with the documents and in particular with her Examination for Discover that took place on February 3, 2022. It was submitted that the Respondent testified at the Examination for Discovery that for the two months prior to the accident, she had been driving her daughter to do her clinical work on Tuesdays and Wednesdays and on those days, when she arrived at her work location, she would walk over to the coffee shop to have breakfast. It was submitted that the Respondent indicated that on February 27, 2019, her intended walk to the coffee shop would have been her fourth trip in this regard. However, it was submitted that when considering that she was going twice a week that would amount to 8 times and not 4 as claimed.
- [23] The Applicants Representative relied on a series of WSIAT Tribunal cases, which it was submitted supported that the worker should be considered to have been in the course of her employment using the premises test. It was submitted that the following cases are relevant to this application.
- [24] It was submitted that *Decision No. 2432/11*, 2013 ONWSIAT 20 stands for the premise that even though an employee is in a parking lot at the time of the accident, if the reasons are reasonably incidental to his or her employment, then the worker will be regarded as being in the course of employment. It was submitted that the Vice-Chair in that case relied on the "premises test," described in *Decision No. 643/02*, 2002 ONWSIAT 1406 which emphasizes the geographic location of the accident, indicating that a personal injury by accident on the employer's premises occurs in the course of employment unless the worker's activity is sufficiently remote from normal employment functions. Other cases argued supportive of this notion were *Decision Nos. 916/16*, 2016 ONWSIAT 1251; and *1455/12*, 2012 ONWSIAT 1707. In this regard, the Applicants Representative submitted that the only reason that the Respondent in this case was on the employer's premises at that time of the accident was because that was where she was going to work.
- [25] In support of the activity of going to get breakfast, the Applicants representative relied on *Decision No. 1548/22*, 2022 ONWSIAT 1779. In that case, it was submitted that the Tribunal noted that picking up lunch was not sufficient to be a distinct departure from employment. It was submitted that the Vice-Chair in that case opined that taking nourishment over a lunch period was a minimal deviation from the worker's regular duties and thus not a distinct departure from employment. It was submitted that in this case, the Respondent indicated that she was going to have breakfast, which it was submitted is analogous and not a distinct departure from her employment.
- [26] The Applicants representative also asked that I be guided by *Decision No. 1501/16*, 2017 ONWSIAT 513 which also involved a PSW working with the same company as in this application. It was submitted that the PSW in that case was walking from a bus stop to her home 75 minutes after seeing her client and yet was found to be in the course of her employment. It was submitted that this decision examined the exceptions of the general rule that a person is in the course of employment when he/she reaches the employer's premises and not in the course of employment when the person leaves the premises. It was submitted that this decision stands for the notion that a worker is considered in the course of employment when conditions of the employment require the person to drive a vehicle to and from work for the employment, unless

there is a distinct departure from a personal errand. Relaying this case to this application, it was submitted that going to a coffee shop for breakfast was not a distinct departure. The Applicants Representative submitted that the Respondent's testimony indicated that she had not had breakfast on the morning on February 27, 2019 and there is a clear nexus that she required some nourishment in order to perform her duties at work that duty. It was submitted that even if she had arrived an hour early in order to go to the coffee shop, it was something that she needed to do in order to perform her job and once she reached the employer's premises, she was continuously in the course of her employment.

[27] The Applicants Representative also asked that I be guided by *Decision Nos. 226/87, 1987 CanLII 1212 (ON WSIAT)* and *276/87, 1987 CanLII 1529 (ON WSIAT)* which stand for the proposition that when individuals perform or engage in minor deviations from their jobs, they will still be considered to be in the course of employment.

[28] In summary, it was submitted that the evidence is clear that the workplace accident happened on the employer's premises and even if the Respondent was going to purchase breakfast, that should be considered to be a minor interlude because she needed nourishment to perform her PSW duties.

(viii) Co-Applicants' representative's submissions

[29] The Co-Applicants' Representative adopted the Applicants' submission and also added the following submissions. The Co-Applicants' Representative asked that I be guided by the documentary evidence, which it was submitted is objective and collaborates that the Respondent's accident occurred after she checked in for work.

[30] It was submitted that the Respondent's oral testimony at the hearing was quite different from her evidence at Discovery and on quite significant points. It was submitted that one of those significant points was with respect to at what point the Respondent signed in. It was submitted that during her Examination for Discovery, the Respondent indicated that she signed in when she was with the client. It was submitted that she recanted this testimony at the hearing when she testified that she actually signed in at 9:35 while she was sitting in the lounge. It was submitted that it was clear that her testimony changed after the employment records were received, which was after the Examination of Discovery. At the Examination of Discovery, it was submitted that the Respondent indicated that she got paid from when she signed in and yet even after she got the employment records indicating a sign-in of 9:35 on the day of the accident, even though the Respondent contended that she was only paid from 10:00 that day, the Respondent never changed her Examination for Discovery testimony. As such it was submitted that her response at the hearing that "everything was messed up" and she was disorganized was self-serving and therefore it was submitted, a negative inference should be drawn.

[31] In addition, the Co-Applicants' representative submitted that a letter received by the Respondent from the Board, dated March 7, 2019 indicated that the Respondent's employer contacted the Board believing the accident occurred during the course of employment. It was submitted that the evidence showed that the Respondent signed into work, and then called in to report the accident, which was recorded by the employer and then sent to the Board. It was submitted that the Board was under the impression that the accident occurred at work, giving her the option to sue or claim benefits.

[32] The Co-Applicants' representative acknowledged that the Applicants Representative submitted very strong jurisprudence with respect to the Respondent's intention of going to a coffee shop to get breakfast prior to the commencement of her employment. However, it was submitted that what she planned on doing really does not matter because she fell on the employer's premises, where she had parked solely for the purpose of employment, which brings her under the ambit of being in the course of employment.

[33] It was submitted that in particular, *Decision No. 1501/16* is relevant because specifically considered in that case was the issue of traveling to and from the work premises. It was submitted that in this application, even though the Respondent arrived at the premises an hour early, it would still be considered to be within the travel time. It was submitted that the only way that it would not be considered is if there was a departure such as a need to do a personal errand and not just to get food. It was submitted that the evidence demonstrated that the worker had to travel with her vehicle in the course of her employment.

[34] In sum, it was the Co-Applicant's Representative's position that the evidence supported that the worker traveled to her workplace, reached the premises, and the accident occurred shortly thereafter on the premises and in the course of her employment.

(ix) Respondent representative's submissions

[35] The Respondent representative submitted that slip and falls in an employer's parking lot can, on the correct facts, bring an individual under the realm of being in the course of his or her employment. However, it was submitted that is not the case in the circumstances of this application. It was submitted that the premises test relied upon by the Applicants and Co-Applicant's is not a foregone conclusion. Rather, it was submitted that there are three factors that have to be considered: time, place and activity and the weighing of these factors will depend on the facts of the particular case. It was submitted that only one of these factors was satisfied according to the representatives' submissions, that being place.

[36] The Respondent representative submitted that had the Respondent intended to go straight to work and she slipped and fell on the premises, she would have been in the course of her employment. However, it was submitted that she arrived at work an hour early for personal reasons. It was submitted that she had not yet started work and was not intending to enter the building. Her intention was to walk to the coffee shop to get breakfast. It was submitted that her evidence disclosed that two days a week, her daughter required a lift to the hospital and on those days the Respondent left her home three hours prior to her start time in order to drop her daughter off and then go out for breakfast.

[37] It was submitted that the Call Logs dated August 17, 2022 indicated that on February 26, the day before the accident, the Respondent signed in at 9:47 a.m. and on February 25, 2019, she had signed in at 9:56 am all supporting that the Respondent's usual time to clock in was five to ten minutes prior to her 10:00 a.m. shift. Although it was acknowledged that the Call Log for February 27, 2019 indicated that the Respondent signed in at 9:35, she explained that was due to her confusion of having fallen. It was submitted that her evidence further indicated that she did not get paid for any time prior to her 10:00 start time unless it was agreed upon between the employer and the client. It was submitted that if the Respondent were to have been compensated from the time of her sign in, then it would be reflected in her pay stubs and in that regard, the payment records indicated that the Respondent was paid for even hours.

- [38] In considering the jurisprudence with respect to time, activity and place, it was submitted that the analysis will all depend on the facts of the case. With respect to time, it was submitted that different decisions have determined that different time periods such as 1.5 to 1.75 hours prior to work was not reasonable to be considered in the course of employment but the cases go further than that. It was submitted that the Tribunal looks at the reason that the person was or was not at the work premises and whether or not that was incidental to course of employment.
- [39] It was submitted that the same type of analysis needs to be used when looking at activity. It was submitted that there are numerous “lunch-break” cases and it was up to each Panel to consider the evidence and determine if there was sufficient departure from the employment in order to conclude that the break was sufficient as to be determined not to be in course of employment. The Respondent representative submitted that in the facts of this application, there is no departure from the Respondent’s work duties because the Respondent had not started work when she fell on February 27, 2019.
- [40] Lastly with respect to the Applicants’ and Co-Applicant’s submissions with respect to travel cases, it was submitted that there is no persuasive evidence that the worker was paid for travel on her regular work days. It was conceded that on one of the worker’s pay stubs in 2018, there was a notation that she had been paid approximately \$34.00 that was listed in the amount to date. It was submitted that there are no travel deductions noted for the regular pay stubs and further it was submitted that had the Respondent been paid for travel expenses, it likely would have amounted to a lot more than \$34.00. It was submitted that it was open to the Applicants and Co-Applicant’s to call the employer as a witness had they required clarification. Thus it was submitted that any negative inference here is on the Applicants and Co-Applicant’s and not the Respondent.
- [41] The Respondent representative asked that I be guided in particular, by three Tribunal Decisions; *Decision Nos. 2922/00*, 2000 ONWSIAT 3206; *1380/01*, 2002 ONWSIAT 1871 and *1721/10*, 2010 ONWSIAT 2533.
- [42] In *Decision No. 2922/00*, it was submitted that the worker arrived an hour and half before his/her shift on the employer’s premises. The worker had fixed working hours. It was submitted that the Vice-Chair determined that the policy indicated that injuries sustained after arriving at work at a “reasonable” time before starting work were compensable. It was submitted that at paragraph 15 of that decision, the Vice-Chair weighed factors such as a clearly established pattern of arriving early for reasons that were unrelated to the job, such as relaxing with a coffee and reading the paper. It was submitted that the Vice-Chair found that the one and a half hours prior to starting time, given these circumstances, could not be considered to be a reasonable period before starting and therefore not “reasonably incidental” to the worker’s employment.
- [43] The Respondent representative submitted that as in *Decision No. 2922/00*, the Respondent’s arrival at her work premises was a reasonably early period. It was submitted that her plan to go and have breakfast and relax before the start of her shift was not reasonably incidental.
- [44] The Respondent representative submitted that the findings in *Decision No. 1380/01* are also relevant to this application. It was in that decision, the Panel found that the worker’s purpose of attending work early was germane to its decision. It was submitted that the Panel determined that meeting with a colleague 70 minutes prior to the commencement of work to confirm a social engagement had nothing to do with his employment and there was therefore no

work relatedness to it. It was submitted that this case is important as it stands for the premise that there is no fixed timeline as to what constitutes early.

[45] Similarly, it was submitted that in *Decision No. 1721/10*, the worker arrived at work an hour and forty-five minutes early because she was sharing a ride with her husband. It was submitted that the Panel in that case determined that finding a worker's time of arrival at work needs to be evaluated on its own facts and merits.

[46] The Respondent representative went through the cases submitted by the Applicants and distinguished them on the facts and asked that I find these cases not analogous to the facts in the present application.

[47] With respect to inconsistencies between the evidence at the hearing and the evidence from the transcript from the Examination for Discovery, it was submitted that the Examination for Discovery took place three years after the accident and this hearing is now five years from that date. It was submitted that the worker was significantly injured and it is understandable that she might have reduced recollection. Notwithstanding, it was submitted that the Respondent's evidence aligns with the time that she made the call to her employer. It was submitted that some of the records were not available at the time of the Examination for Discovery, but it was submitted that the Respondent's overall story about when she fell and what happened afterwards is for the most part consistent.

[48] In summary, it was submitted that the Respondent arrived at work an hour before her shift, not to start work, but to go for breakfast and relax prior to her 10:00 start time. It was submitted that the intention to go and have breakfast had nothing to do with her employment or employment tasks and should therefore not be considered to be related to her employment. Accordingly, it was submitted that the Respondent was not in course of her employment when she fell on February 27, 2019.

(x) Analysis

[49] The application is denied for the following reasons.

[50] As a starting point, I am satisfied that Spectrum, Meighan Retirement Residence, the Governing Council of the Salvation Army and Galtor Properties Inc. are all Schedule I employers, whose statuses have all been verified for this application. I am also satisfied that the Respondent was an employee of Spectrum at the time of her slip and fall and that she was contracted to work at the Residence.

[51] The evidence indicates that the Respondent was scheduled to work at the Residence on February 27, 2019. Her shift was to begin at 10:00 a.m. The Respondent slipped and fell near the back entrance of the Residence, next to the garbage can prior to her shift and there is no dispute that the Respondent was on the employer's premises at the time of the fall. The determining factor in this application is whether the worker was in the course of employment at the time of her fall.

[52] While the Tribunal is not required to apply Board policy in right to sue applications, I find it relevant to consider OPM Document No. 15-02-02, "Accident in the Course of Employment." That policy provides as follows:

Policy

A personal injury by accident occurs in the course of employment if the surrounding circumstances relating to **place**, **time** and **activity** indicate that the accident was work-related.

Guidelines

In determining whether a personal injury by accident occurred in the course of employment, the decision-maker applies the criteria of **place**, **time**, and **activity** in the following way:

Place

If a worker has a fixed workplace, a personal injury by accident occurring on the premises of the workplace generally will have occurred in the course of employment. A personal injury by accident occurring off those premises generally will not have occurred in the course of employment.

If a worker with a fixed workplace was injured while absent from the workplace on behalf of the employer or if a worker is normally expected to work away from a fixed workplace, a personal injury by accident generally will have occurred in the course of employment if it occurred in a place where the worker might reasonably have been expected to be while engaged in work-related activities....

If a worker has fixed working hours, a personal injury by accident generally will have occurred in the course of employment if it occurred during those hours or during a reasonable period before starting or after finishing work.

If a worker does not have fixed working hours or if the accident occurred outside the worker's fixed working hours, the criteria of place and activity are applied to determine whether the personal injury by accident occurred in the course of employment.

Activity

If a personal injury by accident occurred while the worker was engaged in the performance of a work-related duty or in an activity reasonably incidental to (related to) the employment, the personal injury by accident generally will have occurred in the course of employment.

[53] OPM Document No. 15-03-03, "On/Off Employers' Premises" defines an employer's premises and where an accident shall be considered to arise out of the employment. In addition it provides the following exceptions.

An accident shall be considered to arise out of the employment when it happens on the employer's premises as defined, unless at the time of the happening of the accident

- the accident is occasioned by the injured worker using, for personal reasons, any instrument of added peril such as on automobile, motorcycle, or bicycle, except when the accident was caused by the condition of the road or happening under the control of the employer, or
- the worker is performing an act not incidental to his work or employment obligations.

[54] OPM Document No. 15-03-04, "Employers' Premises, Parking Lots, Roads, Plazas, Mall, Boundaries" sets out that workers are in the course of employment "upon entering the employer's premises at the proper time, using an accepted entrance." The policy goes on to state generally that workers will not be in the course of employment when they leave the employer's premises. The traveling provisions are set out in OPM Document No. 15-03-05, "Travelling", the relevant portion being "Proceeding to and from work." It sets out that a worker is considered to be in the course of employment where one of the conditions of the employment requires a

worker to drive to and from work for that employment, “except when a distinct departure on a personal errand takes place enroute.”

[55] OPM Document No. 15-03-08, “Personal Activities/Removing Self from Employment,” deals with situations where a worker is doing normal personal tasks outside of the worker’s normal duties or going places that have nothing to do with the employer. The policy indicates that these scenarios would not be compensable.

[56] These policies are meant to be considered together when considering whether a worker should be found in the course of and arising out of the course of employment because they are nuanced to the different scenarios that may arise in any workplace accident. The Applicants’ and Co-Applicant’s applications focus significantly on the “premises test” in that the Respondent’s accident occurred within a reasonable time prior to commencement of her work on February 27, 2019 and she was on the employer’s premises after having parked her car there for the purpose of attending work. In fact, the Co-Applicant’s Representative submitted that even if the Respondent had, as she claimed, arrived at the work premises an hour early for her shift, she was still within the travel time that would have been contemplated in the policy. Further, he submitted that travel with her own vehicle was a factor of her employment and the accident occurred during that travel to work.

[57] While I agree that the “premises test” is a relevant consideration in this case, I also recognize that it is not being disputed. The evidence clearly demonstrated that the worker arrived at the employer’s parking lot earlier than her shift was to begin and she slipped and fell on the employer’s premises when she went to throw out garbage. The parties are in agreement with those facts. However, that does not mean that just because the worker fell on the premises prior to her work shift that she was automatically in the course of her employment. In order to come to a finding in that regard, and as set out below, I have examined all the factors in policies including, time, place, and activity.

(a) Place

[58] It is appropriate that I begin this analysis with place because as indicated above, there is no dispute that the slip and fall occurred on the employer’s premises. Although the testimony was not completely clear as to whether the fall was on the walkway or on the pavement, or how close to the door the walkway was, I find these factors to be insignificant in the circumstances of this application. I am satisfied that the evidence demonstrates that the Respondent drove to her employer’s parking lot and parked, she went to throw out garbage in the cans that are towards the back of the employer’s building and she slipped and fell on the employer’s premises.

(b) Time

[59] The Respondent testified that she arrived at the employer’s premises at 9:03 a.m., an hour prior to her 10:00 a.m. shift. It is the Applicants and Co-Applicants submissions that there was no supporting evidence to demonstrate the time of the Respondent’s arrival at the employer’s premises. It was submitted that the Respondent’s oral testimony could not be relied upon because her memory about events was poor and there were inconsistencies between the Respondent’s testimony at the hearing and her oral testimony at her Examination for Discovery. For example, it was submitted that the Respondent could not adequately describe exactly where the accident took place; whether it was on the sidewalk or the pavement. It was also submitted that the Respondent did not indicate at the Examination for Discovery that she signed in for her

shift at 9:35 a.m., a factor that came to her attention after undertakings were provided and her evidence up to the date of the hearing had not been corrected. Further, it was submitted that the documentary evidence such as the clinical note from the family doctor and the Form 7 from the employer, both indicate that the accident happened at the back entrance when the Respondent was coming into work.

[60] The Applicants and Co-Applicant's representatives theorized that the worker had not arrived at 9:03 as stated but actually arrived at 9:35, the time of her sign-in and the accident occurred sometime between 9:35 and 9:45 when she reported it. It was submitted that the Respondent testified that she was very confused after the accident and therefore, the objective evidence vis a vis the time of sign-in, the time of reporting and then the actual time of her shift should be considered the more reliable evidence. It was submitted that would mean that the Respondent arrived at work later than she claimed and she had not been intending on going to Tim Hortons that day as claimed. Further that would mean that she started her employment that day at 9:35 a.m. and the accident happened after that time, while she was actually in the course of her employment.

[61] I recognize that is a plausible theory except that in my view, the Respondent was a credible witness. I recognize that there were some discrepancies between the Respondent's evidence at her Examination and her testimony at the hearing, however, I do not find any of these discrepancies weigh against her overall contention as to when and how the fall occurred.

[62] The Respondent's testimony disclosed that she had been driving her daughter to the hospital on Tuesdays and Wednesdays every other week over a period of two months. Whether this had occurred three times prior, as she noted in discovery or 7 times as suggested by the Applicants is irrelevant. It was clear from the Respondent's testimony that she left her home around 6:00 a.m. on those days in order to get her daughter to the hospital and then proceeded to work. Her testimony revealed that she would arrive at her employer's premises at around 9:00 a.m. Thus I find there is no reason to dispute that on February 27, 2019, the Respondent also arrived at her workplace parking lot at approximately 9:03 a.m.

[63] The evidence as noted above indicated that the Respondent signed in to work through an application on her work designated phone at 9:35 a.m. The Respondent explained that after her accident, she reported to the nursing station and then went up to the lounge. She testified that she then signed into work. She acknowledged that she was only supposed to sign into work once she was with her client and she had not been with her client at the time of sign in. However, she explained that she was confused and in pain and was not particularly paying attention to what she was doing. Further, she testified that it did not really matter anyway when she signed in because she was scheduled to work from 10:00 a.m. and she would not be paid prior to that in any event. As noted in her oral testimony, she then realized that she did not sign in with security and proceeded to go downstairs and sign in there and then she contacted her employer to report the accident.

[64] I recognize that the family doctor's clinical note seemed to indicate that the Respondent fell at the back entrance. The note dated March 5, 2019 noted "she is at work Feb 27/2019 – one entrance at the back – walkway to the door." I do not find anything in this statement that would lead me to make a finding that the Respondent was entering at the back entrance coming into work when this accident occurred. In my view, it just describes where the accident occurred. With respect to the Form 7, although there is a statement that the worker reported she was

walking into the back entrance of the Salvation Army, I do not give it much weight because it is without much detail. Given that the Respondent was present at the hearing and was able to give testimony and answer questions, I prefer her evidence over the evidence found on this form.

[65] I find the Respondent's explanation with respect to her signing in early to be persuasive. I am satisfied that after having had a fall whereby she was injured, it is conceivable that she would have felt confused and acceptable that she may have done something, such as signing in early, due to her confusion. I do not find the fact that the Respondent had not corrected her testimony prior to this hearing with respect to her sign-in weighs against her. She had the opportunity to address all the discrepancies at the hearing and in my view, her explanations were reasonable. I also note that call logs indicated the worker signed in at 9:56 a.m. on February 25, 2019 and 9:47 a.m. on February 26, 2019, which are notably later than the 9:35 a.m. sign-in time on the date of the accident and closer to the 10:00 a.m. start time. This is generally in keeping with the worker's testimony that she would normally arrive and sign-in 10 minutes prior to the start time and the fact that the worker was not paid prior to her 10:00am start time, so there would not appear to be a reason to arrive even earlier to work.

[66] In determining whether being an hour early on the employer's premises constitutes being in the course of employment, I have considered the Respondent's activity on the date of the accident.

(c) Activity

[67] The Respondent testified that normally she would arrive at work approximately 10 minutes prior to her shift. However, she testified that on the days that she drove her daughter to work, she would arrive an hour early, park her car, and walk the 5 minute walk to Tim Hortons to have breakfast. The question I need to answer is whether this activity is a distinct departure from the Respondent's employment because she had already arrived on the employer's premises.

[68] The Applicants' and Co-Applicant's Representatives submitted that going for breakfast is not a distinct departure. In fact, they relied on *Decision No. 1548/22* whereby leaving a worksite to purchase lunch and return to eat it was found to be an activity incidental to employment. They also relied on one of the Vice-Chair's considerations that "[t]aking nourishment over the lunch period is a requirement of this and any other job." In this regard, it was submitted that the Respondent had not eaten breakfast before she left for work and she would have required nourishment to perform her job.

[69] Noteworthy about *Decision No. 1548/22* is the Vice-Chair's review of many past "lunch break" cases. He found the general proposition in the jurisprudence is that "a lunch break is a personal activity constituting a distinct departure from the employment." However, the Vice-Chair also considered in that case whether the activities that the worker was involved in were reasonably incidental to his employment and considered the factors set out in OPM Document No. 15-02-02. The Vice-Chair then found that the activities were reasonably incidental to the worker's employment.

[70] Most of the Tribunal jurisprudence is fact specific and while they provide significant guidance, they generally turn on the facts. One of the defining differences in the circumstances of this case is that the Respondent had not started her workday when she arrived at the employer's premises. Thus, in my view the going out for breakfast prior to starting work cannot generally be considered to be a continuous activity as it may be found in "lunch break" cases.

[71] The Respondent's testimony revealed that she had no intention of starting work early on February 27, 2019 and in fact, she would not get paid before 10:00 a.m. Rather, her intention was, as it had been on previous Tuesdays and Wednesdays when she drove her daughter to work, to walk to Tim Hortons, relax and have breakfast. This was not the first time that the Respondent had these plans and had carried them out several times before. I find that the evidence demonstrates a pattern of the Respondent's activities on the Tuesdays and Wednesdays that she drove her daughter to the hospital and then went out for breakfast before starting her shift. I find that her activities in this regard were outside of her regular employment.

[72] I am not persuaded by the Applicants Representative's submission that the Respondent required nourishment prior to starting work, which was a requirement of her job. Firstly, I distinguish getting breakfast before the start of work from having to get something to eat or drink during the course of a workday, which may or may not be a continuous activity of the work. The fact that the Respondent chose to have breakfast prior to starting work is not relevant if she had not yet started her shift or at the very least, been very close to her shift start time. In this case, it was an hour prior to her shift and in my view no link can be made between the activity of going for breakfast prior to starting work and the job itself.

[73] I am also not satisfied that the mere activity of parking at the employer's premises one hour prior to her start time indicates that the Respondent was in the course of her employment at the point of her arrival. The witness, Ms. W. testified that other than some designated and numbered spots for the residents, anyone from the public could park in the employer's lot. The Respondent testified that the lot was close to her breakfast destination. I accept that the evidence demonstrates on a balance of probabilities that it was a matter of convenience only that the Respondent parked in that lot and her intention was then to go for breakfast, as it had been on previous Tuesdays and Wednesdays, and not to start work noting her shift did not begin until 10:00 a.m.

[74] Lastly, I find there is no persuasive evidence with respect to the submissions that the Respondent was paid to travel to work and that travel time is consumed in the employment start time. The Respondent testified that since 2018, she was not required to travel for work and she would only get paid when she had more than one client in a day and had to travel between them. This was clearly not the case. It was also not supported by the evidence, which, for the most part, indicated that there were few travel expenses since 2018. Thus, I find the fact that the Respondent drove to work to be an irrelevant consideration to the facts of this case.

[75] As noted above, the Applicants and Co-Applicants ask that I be guided by a number of Tribunal cases. However, as I noted above, they are all fact specific and are not in my view, analogous to the facts of this case.

[76] Having regard to all the evidence in this application and for all the reasons I have outlined above, I find that the Respondent was not in the course of employment when she had a slip and fall accident on February 27, 2019. I find therefore that the Respondent retains her right of action.

DISPOSITION

- [77] The application is denied. The right of action against Meighen Retirement Residence, the Governing Council of the Salvation Army and Galtor Property Services Inc. is not taken away by the Act.

DATED: February 16, 2024

SIGNED: P. Ahlfeld